

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF ILLINOIS
EASTERN DIVISION

HA MINH PHAM -and-
LIEN PHAM,

Plaintiffs,

-vs-

ELISE L. MCCABE -and-
STEPHEN D. BRIDGE,

Defendants.

) FILED: MAY 20, 2008
) 08CV2924 PH
) JUDGE KENDALL
) MAGISTRATE JUDGE MASON
)

) CASE NO. _____
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COMPLAINT FOR DAMAGES AND JURY DEMAND

Come now the plaintiffs, Ha Minh Pham and Lien Pham, by counsel, Kevin C. Smith of Rubino, Ruman, Crosmer, Smith, Sersic & Polen, and for their cause of action against the defendants, Elise L. McCabe and Stephen D. Bridge, state as follows:

1. That the plaintiff, Ha Minh Pham, is a citizen of the State of Florida.
2. That the plaintiff, Lien Pham, is a citizen of the State of Indiana.
3. That the defendant, Elise L. McCabe, is a citizen of the State of Maine.
4. That the defendant, Stephen D. Bridge, is a citizen of the State of Texas.
5. The matter in controversy exceeds Seventy-Five Thousand Dollars (\$75,000.00), exclusive of interest and costs.
6. Jurisdiction is based upon diversity of citizenship.

7. That on or about June 19, 2006, the plaintiff, Ha Minh Pham, was lawfully operating his motor vehicle in the left eastbound lane of I-80 in Sable Township, Grundy County, Illinois.

8. That at said time and place, the defendant, Elise L. McCabe, was operating a vehicle owned by defendant, Stephen D. Bridge, in the center eastbound lane in Sable Township, Grundy County, Illinois.

9. That at said time and place, defendant, Elise L. McCabe, was at fault in causing a collision to occur with the plaintiffs' vehicle.

10. At all times relevant hereto, defendant, Stephen D. Bridge, was the owner of the vehicle which struck the vehicle occupied by the plaintiffs, and negligently entrusted the vehicle to defendant Elise L. McCabe, when he knew, or should have known, of defendant Elise L. McCabe's unfitness to drive.

11. That as a direct and proximate result of the negligent fault of the defendants, the plaintiffs were injured, some of which injuries may be permanent, incurred medical expenses, economic loss and were otherwise damaged.

WHEREFORE, the plaintiffs seek compensatory damages which will reasonably compensate them in excess of the jurisdictional limit of this Court, plus costs, and any other proper relief.

s/ KEVIN C. SMITH
KEVIN C. SMITH - #6226136

s/ MINH C. WAI
MINH C. WAI
Attorneys for Plaintiff

JURY DEMAND

Plaintiffs, by counsel, demand trial by jury.

s/ KEVIN C. SMITH

KEVIN C. SMITH - #6226136

RUBINO, RUMAN,

CROSMER, SMITH, SERSIC & POLEN

Attorneys for Plaintiffs

275 Joliet Street - Suite 330

Dyer, Indiana 46311

#219/322-8222

s/ MINH C. WAI

MINH C. WAI

LAW OFFICES OF MINH C. WAI, P.C.

260 East 90th Drive

Merrillville, Indiana 46410

#219/793-9000